

7.	25CV1097	LIIMATTA v. EVANS
Motion for Protective Order & Monetary Sanctions (2)		

The Notices do not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

This case involves concrete work performed by Defendants for Plaintiffs' driveway. Defendants John William Evans and Jared Evans (collectively "Defendants") move for Orders limiting Plaintiff's discovery requests on the grounds that: the discovery sought is not relevant; the burden and expense outweigh the likelihood that the information will lead to discovery of admissible evidence; and the method of discovery is unduly burdensome. The two motions are basically identical, aside from the number of discovery requests served on the Defendants, which differ slightly.

In her declaration, Khaya Pleshchitskaya merely states that "meet and confer attempt[s] to communicate with Plaintiff...have been unsuccessful." (Plesh. Decl.) The Court does not find this sufficient. The declaration of Robert Grijalba further bolsters this, by providing a detailed timeline of his meet and confer efforts and in fact defense counsel's unwillingness to engage.

On March 9, 2026, counsel for Defendants requested Plaintiffs to withdraw Special Interrogatories Nos. 90-95 and 99-106 and Inspection Demands Nos. 17- 25 and 62-63 (Plesh. Decl. ¶2, Plesh. Decl. Exhibit 6.) Contrary to defense counsel's declaration, Plaintiffs' counsel states he made several concessions and proposals to resolve the dispute. Plaintiff: (i) withdrew Inspection Demands Nos. 24 (tax records) and 25 (warranty language) (Grijalba Decl. ¶ 15; IOE Ex. "16" at 18); (ii) narrowed Inspection Demand No. 21 to cover only sales of "drainage-related materials, catch basins, or piping" rather than all "consumer goods" (Grijalba Decl. ¶ 15; IOE Ex. "16" at 15); and (iii) proposed a stipulated protective order and offered to allow redaction of personal identifying information to address Defendant's privacy concerns regarding Inspection Demands Nos. 20 (other customer contracts), 22 (customer complaints), and 23 (prior litigation) (Grijalba Decl. ¶ 15; IOE Ex. "16" at 15-17). (emphasis added)

Plaintiffs' counsel has shown a willingness to engage in meet and confer efforts and resolve these disputes. In her declaration with the Reply, defense counsel states she "overlooked" the first two items in Plaintiffs' proposal to resolve the dispute and proceeded to file the instant motions. The Court finds that further meet and confer efforts are warranted and likely to be successful.

TENTATIVE RULING #7:

**HEARING CONTINUED TO MONDAY, JULY 17, 2026, AT 8:30 AM IN DEPARTMENT NINE.
DEFENSE TO FILE A STATUS REPORT WITH THE COURT BEFORE JUNE 22, 2026, REGARDING**

WHETHER THE HEARING IS STILL NECESSARY, AND IF SO, WHICH ISSUES STILL NEED TO BE ADDRESSED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.